

Back-to-Back IOT Discount Letter

This IOT Discount Letter Number 5 (the "Letter") is made with an effective date of 1 January 2024 between:

- (1) **Etisalat Misr** (hereinafter referred to as "**Etisalat Misr**") a company registered in Egypt and whose registered office address is at Street, Cairo, Egypt,

and

- (2) **Emirates Telecommunications Group Company PJSC** (hereinafter referred to as "**Etisalat**") formerly known as Emirates Telecommunications Corporation (Etisalat), a public joint stock company Abu Dhabi, United Arab Emirates,

collectively referred to herein as the "**Parties**" and each individually as a "**Party**".

WHEREAS:

- (1) The Orange Affiliates (as defined hereunder), duly represented by Orange S.A., a limited company incorporated under the laws of France and having its registered office at 78 rue Olivier de Serres, 75015 Paris, France ("**Orange**") acting on its own behalf and for and on behalf of the other Members of Orange Group (Orange France S.A. having been merged into France Telecom S.A. on 30 June 2013 and France Telecom S.A. having been renamed Orange S.A. on 1 July 2013), and Etisalat have entered into a framework agreement with an effective date of **1 January 2020** (as amended, varied or supplemented from time to time) for the provision of Discounts on Revenues generated in respect of Traffic between the Etisalat Affiliates and the Orange Affiliates in each other's networks during any Discount Period under the relevant Roaming Agreements (the "**Framework Agreement**");
- (2) On the date of this Back-to-Back IOT Discount Letter, Orange, for and on behalf of the Orange Affiliates, and Etisalat have entered into an IOT Discount Letter pursuant to which they have agreed the New IOTs that will be applicable during Discount Period;
- (3) The Parties (and other Etisalat Affiliates) have entered into a Back-to-Back Agreement with an effective date of **1 January 2020** (as amended, varied or supplemented from time to time) in order for the Etisalat Misr to benefit from the Discount on Revenues agreed between Etisalat and Orange for the duration of any discount period (the "**Back-to-Back Agreement**");
- (4) The Parties have agreed to enter into this Letter in order for Etisalat Misr to benefit from the New IOTs that will be applicable for the Discount Period (as defined in this Letter).
- (5) Execution of this Letter by the Parties will create a binding contract between Etisalat Misr and Etisalat.

THE PARTIES AGREE AS FOLLOWS:

1. DEFINITIONS

All capitalised terms appearing in this Letter shall have the meaning given to them in the Framework Agreement, unless otherwise defined herein. In this Letter the following words and expressions have the following meanings:

Discount Period	means either - the Discount Period 1 from 1 January 2025 until 31 December 2025 (inclusive); or except that if this Letter is terminated prior to completion of Discount Period 1, the period shall be from 1 January 2024 until the date of termination;
Duration of the Letter	has the meaning given to it in Clause 5.2 of this Letter;
Fraudulent Traffic	means unusual traffic with high associated interconnection and termination costs, typically generated on fraudulently acquired GSM SIM cards with international roaming status shipped to a foreign roaming location with the purpose of generating fraud incomes or fraud activities as set out in one (or more) of the scenarios presented in the latest version of FF.21 official GSMA document. For illustration purposes, criteria may include but are not limited to the following indicators: calls which generate traffic using a limited number of IMSIs; calls to unusual service numbers (e.g. premium numbers, value added services numbers, conference numbers) or to third countries not included in the HPMN or VPMN destinations; calls made with a high frequency (e.g. multiple calls from an A-Number to the same B-Number [ranges] in the country of the HPMN/VPMN Operator or to a third country or to any other terrestrial or non-terrestrial destination); calls with a long duration, i.e. calls with an average duration which is a multiple of the standard average call duration; calls with a different pattern destination (e.g. the monthly call volume for destination country differs from the average of the previous 3 months by more than 25% or when the monthly call volume for destination country differs from the respective volume in the previous year by more than 25%). Episodes of Fraudulent Traffic will be considered significant when the Traffic associated with them represents more than 50,000 Euros of the roaming charges (" Significant Fraudulent Traffic ").
New IOTs	means the discounted IOT rates to be applied by Etisalat Misr for Traffic for the duration of the relevant Discount Period in accordance with Clause 2;
Orange Affiliates	means those Orange affiliate companies whose TADIG codes are listed in Clause 3 of this Letter;
Orange EU Affiliates	means those Orange affiliate companies whose TADIG codes are listed in Clause 3.2 of this Letter;
Etisalat Affiliates	means Etisalat Affiliates whose TADIG code is listed in Clause 3.3 of this Letter;

Send or Pay Commitment	means the minimum amount of charges in respect of Voice, SMS and/or Data Traffic that the Parties (Etisalat on one side and relevant Orange Affiliates on the other side) shall pay each other. For the avoidance of doubt, the Parties expressly agree to pay each other at least their relevant Send or Pay Commitment regardless of whether or not any Traffic was sent by either Party and or their relevant Affiliates to the network of the other Party and or their relevant Affiliates.
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2. THE DISCOUNT - NEW IOTs

For the Duration of the Letter, the following New IOTs will be applicable between the Orange EU Affiliates, on the one hand, and by Etisalat Misr, on the other hand, during each Discount Period:

2.1. Etisalat Misr Send or Pay Commitment

During each Discount Period Etisalat Affiliates collectively may send as combined traffic to the networks of Orange EU Affiliates following volumes within Send or Pay Commitment of **EUR 250,000** (one hundred seventy thousand euro):

		Etisalat Affiliates
Send or Pay Commitment (€)		5500,000
Traffic Allowance	MOC (min)	800,000
	SMS	455,000
	Data (MB)	58,000,000

2.1.1. Etisalat Misr will send during each Discount Period to the networks of the Orange EU Affiliates volume of Actual Minutes of MOC and volume of SMS Messages of SMS Traffic and/or Actual Megabytes of Data Traffic, as a minimum, equivalent to **EUR 90,000** (sixty five thousand euro) or if Etisalat Misr does not do so, then Etisalat Misr shall pay the difference (between the total revenue relating to the Etisalat Misr Send or Pay Commitment actually charged by Orange EU Affiliates and **EUR 90,000**) to Orange EU Affiliates at the end of each Discount Period.

2.1.2. Etisalat Misr may send the below traffic during the discount period to the network of the Orange EU Affiliates:

Traffic type	Traffic Allowance
MOC (min)	230,000
SMS	530,000
Data (MB)	88,500,000

2.1.3. In the event Etisalat Misr exceeds any of the above traffic allowances, then the incremental rates will be applied for the additional traffic.

incremental rates	
MOC (EUR per minute)	0.15 €/min

SMS (EUR per unit)	0.035 €/SMS
Data (EUR per MB)	0.022 €/MB

2.2. **Orange EU Affiliates Send or Pay Commitment**

During each Discount Period Orange EU Affiliates may send as combined traffic to the networks of Etisalat Affiliates following volumes within Send or Pay Commitment of **EUR 5,390,000**

		Orange EU Affiliates
Send or Pay Commitment (€)		450,000
Traffic Allowance	MOC (min)	330,000
	SMS	140,000
	Data (MB)	88,500,000

2.2.1. **Fixed revenue:** Orange EU Affiliates will send during each Discount Period to the network(s) of Etisalat Misr a volume of Actual Minutes of MOC and/or SMS Messages of SMS Traffic and/or Actual Megabytes of Data Traffic which has a value, as a minimum, equivalent to **EUR 375,000** (one hundred forty thousand euro) ("**Fixed Revenue**") or if the Orange EU Affiliates do not do so, then Orange EU Affiliates shall pay the difference (between the total revenue actually charged by Etisalat Misr and **EUR 375,000**) in relation to amounts due in respect of its Affiliates at the end of each Discount Period.

2.2.2. **Variable revenue:** During each Discount Period Etisalat Misr will also receive a proportionate share ("**Variable Revenue**") of **EUR 75,000** (fifty eight thousands euro) based on the Actual Minutes of MOC that the Orange EU Affiliates have sent to the networks of all the Etisalat Affiliates.

2.2.3. In the event Orange EU Affiliates exceeds any of the above traffic allowances, then the incremental rates will be applied for the additional traffic

incremental rates	
MOC (EUR per minute)	0.15 €/min
SMS (EUR per unit)	0.025 €/SMS
Data (EUR per MB)	0.033 €/MB

2.2.4. **Incremental Revenue:** If the Orange EU Affiliates collectively send to the networks of the Etisalat Affiliates a combined volume of Actual Minutes of MOC and SMS Messages of SMS Traffic and Actual Megabytes of Data Traffic that exceeding combined allowance of MOC, SMS & Data Volume, then the incremental rates will be applied for the additional traffic.

In this case, Etisalat Misr will receive a proportion of incremental revenue based on the Actual Minutes of MOC.

2.2.5. **Total Revenue:** For the avoidance of doubt, for each Discount Period, the total revenue received by Etisalat Misr will be the summation of the Fixed Revenue, Variable Revenue and Incremental Revenue (if applicable), as determined in its sole discretion by Etisalat and in accordance with the terms of this Letter.

- 2.3. The Discount shall not be applied to any premium and satellite calls which shall be charged as per AA14 standard IOTs.
- 2.4. There will be no call set up or PDP charges.
- 2.5. There will be no charge for MTC Voice Traffic.
- 2.6. All Voice Traffic is to be charged in Actual Minutes, that all Data Traffic is to be charged in Actual Megabytes and that all SMS traffic is to be charged per SMS. MOC / MTC: per 1 sec, SMS: per event, Data: per 1KB.

3. LIST OF AFFILIATES

3.1. Only the Traffic generated on the TADIG Codes below is used to calculate the Discount.

3.2. Orange EU Affiliates

<u>TAP-code</u>	<u>Company name and address</u>	
FRAF1 AAZOR	Orange (Orange France) 78 rue Olivier de Serres 75505 Paris Cedex 15, France	
REU02	Orange (Réunion Division) 35 Boulevard du Chaudron 97490 Sainte Clotilde, La Réunion	
BELMO	Orange Belgium S.A./N.V. Avenue du Bourget 3 1140 Brussels, Belgium	
LUXVM	Orange SA (Luxembourg) 8, Z.A.I Bourmicht L-8070 Bertrange, Luxembourg	
ESPR ESPJZ	Orange Espagne, S.A.U. Paseo del Club Deportivo nº1 Parque Empresarial La Finca, Edificio 7 28223 Pozuelo de Alarcon (Madrid), Spain	
POL03	Orange Polska S.A. Al. Jerozolimskie 160 02-326 Warsaw, Poland	
ROMMR	S.C. Orange Romania S.A. BD Lascar Catargiu no. 47-53 1st district, Bucharest, Romania	
SVKGT	Orange Slovensko a.s. Metodova 8, 821 08 Bratislava, Slovakia	
MDAVX	Orange Moldova S.A. Str. Alba Iulia 75 MD-2071 Chisinau, Republic of Moldova	
GLP01	Orange Caraïbe BP 2336, 97196 Jarry Cedex Guadeloupe FW, France	

3.3. Etisalat Affiliates

<u>TAP-code</u>	<u>Company name</u>
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AFGEA	Etisalat Afghanistan LLC
EGYEM	Etisalat Misr
PAKUF	Pak Telecom Mobile Limited

- 3.4. Subject to the consent of Etisalat Misr, such consent not to be unreasonably withheld, conditioned or delayed, Etisalat Misr agrees that the list of Orange Affiliates, set out in Clause 3 of this Letter, may be updated from time to time in accordance with the Back-to-Back Agreement.

4. TAXES

Notwithstanding anything to the contrary in Framework agreement, Send or Pay Commitment and discounted IOT specified in Clauses 2 above will be provided on **tax-inclusive** basis (including VAT).

5. MISCELLANEOUS

- 5.1. All terms and conditions contained in the Back-to-Back Agreement are expressly incorporated by reference into this Letter unless otherwise agreed between the Parties. For the avoidance of doubt, the following clauses of the Back-to-Back Agreement will apply mutatis mutandis to this Letter: clauses 1, 11, 12, 13 and 14.
- 5.2. This Letter shall be deemed to come into effect on **1 January 2025** (the "**Discount Commencement Date**") and unless terminated earlier in accordance with the provisions of the Back-to-Back Agreement shall continue in full force and effect for a period of twelve (12) months from the Discount Commencement Date, i.e. until 31 December 2024 inclusive, except that if this Letter is terminated prior to completion of this period, the period shall be from 1 January 2024 until the date of termination (the "**Duration of the Letter**").
- 5.3. In the event that the Back-to-Back Agreement is terminated prior to the expiry of the Duration of the Letter, notwithstanding its termination, the terms and conditions of the Back-to-Back Agreement shall continue to apply to this Letter until the Duration of the Letter has expired or been terminated in accordance with its terms.
- 5.4. This Letter may be executed in a number of counterparts, each of which, when executed and delivered, shall be an original, and all the counterparts together constitute one and the same instrument.

EXECUTED by the Parties:

Emirates Telecommunications Group Company PJSC (Etisalat)

Agreement Number []

Name: Ali Amiri

Title: Group Chief Carrier & Wholesale Officer

Date:

Etisalat Misr

Name: Ali Al Bustani

Title: Director, Operations & Carrier Business

Date: